

2. 9:00 AM CASE NUMBER: C22-00901

CASE NAME: SALEHOMOUM VS. BAHRAMI-DAGHIGH

*HEARING ON MOTION IN RE: MONETARY SANCTIONS FOR FAILURE OF OMID BAHRAMI TO OBEY RULES

FILED BY: SALEHOMOUM, MOJDEH

TENTATIVE RULING:

Continued to 3/13/15/9AM, D22, due to unavailability of Judge Joni Hiramoto, the judge to whom the case is assigned.

3. 9:00 AM CASE NUMBER: C24-01031

CASE NAME: MATTHEW JACKSON VS. PAR WESTERN LINE CONTRACTORS, LLC

HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO AMIEL J. PROVOSTY

FILED BY: PAR WESTERN LINE CONTRACTORS, LLC

TENTATIVE RULING:

Unopposed. GRANTED.

4. 9:00 AM CASE NUMBER: C24-03121

CASE NAME: MOLLY STAFFORD VS. CITY OF RICHMOND

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: CITY OF RICHMOND

TENTATIVE RULING:

Before the Court is Defendant City of Richmond's Demurrer to Plaintiff's Complaint.

For the following reasons, Defendant's Demurrer is **sustained**.

Allegations of Complaint

Plaintiff alleges that she was caused to fall due to a crack in the sidewalk located near the properties of 4140 Fran Way LLC, in Richmond, California. The fall injured Plaintiff. It is alleged that the sidewalk was owned and maintained by Defendant City of Richmond. The complaint asserts two causes of action: (1) Premises Liability, and (2) General Negligence.

Plaintiff filed her form complaint on November 19, 2024. "The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days of after the filing of the complaint." (Cal. R. Ct. 3.110 (b).) "After a summons has been served on a person, proof of service of the summons ... **shall be filed**, unless the defendant has previously made a general appearance." (Code Civ. Proc. § 417.30.) The docket does not indicate that any proof of service of summons has been filed in this matter.

Defendant City of Richmond filed its demurrer on November 10, 2025.

Legal Standard for Demurrer

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) "The function of a demurrer is to

test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) The Court treats the demurrer as admitting all material facts properly pleaded but disregards contentions, deductions, or conclusions of law. (*City of Atascadero v. Merrill Lynch, Pierce, Fenner, & Smith, Inc.* (1984) 68 Cal.App.4th 445, 459.)

A demurrer lies only for defects appearing on the face of the complaint or from matters of which the court must or may take judicial notice. (CCP 430.40; see *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) In addition, the court will “accept as true both facts alleged in the text of the complaint and facts appearing in exhibits attached to it.” (*Mead v. Sanwa Bank California* (1998) 61 Cal.App.4th 561, 567.) “If the facts appearing in the attached exhibit contradict those expressly pleaded, those in the exhibit are given precedence.” (*Ibid.*)

Meet and Confer

Before filing a demurrer, the “demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the demurrer....” (Code of Civil Procedure §430.41(a). “The parties shall meet and confer at least 5 days before the date the responsive pleading is due.” (*Id.* at (a)(2).) The meet and confer shall be by phone or videoconference, if not in person. (*Id.* at (a).) The moving party is required to file a declaration regarding the meet and confer efforts and outcome. (*Id.* at (a)(3).)

The City’s declaration in support indicates that they prepared and sent a meet and confer email to Plaintiff’s counsel on April 13, 2025. (Gelini Decl. ¶ 3.) Plaintiff’s counsel responded on April 17, indicating that he would look into the issues and they would work something out. (*Id.* at ¶ 4.) When the City’s counsel did not hear back from Plaintiff’s counsel she “emailed again, and again and again,” and continued to get no response. (*Id.* at ¶ 6.) Given no response, the City filed the demurrer.

The City’s declaration verifies that Plaintiff’s counsel “failed to respond to the meet and confer,” and as such meets the requirements of section 430.41. As such, the Court will rule on the demurrer. The Court does, however, remind Plaintiff’s counsel that it has a duty to meet and confer with opposing counsel when faced with a demurrer or motion to strike. Failure to respond, especially after repeated efforts by the City’s counsel, is not acceptable.

Analysis

The City demurs to both causes of action for failure to state a claim because neither of the causes of action identify the statutory basis of liability against the City.

Under the California Tort Claims Act, a public entity is not liable for an injury arising from an act or omission except as provided by statute.” (*Creason v. Department of Health Services* (1998) 18 Cal.4th 623, 630.) “There is no common law governmental tort liability in California; and except as otherwise provided by statute, there is no liability on the part of a public entity for any act or omission of itself, a public employee, or any other person.” (*Gibson v. City of Pasadena* (1978) 83 Cal.App.3d 651, 655 quoting *Cowing v. City of Torrance* (1976) 60 Cal.App.3d 757, 761.)

“In order to state a cause of action for government tort liability, ‘every fact essential to the existence of statutory liability must be pleaded with particularity, including the existence of a statutory duty.’” (*Zuniga v. Housing Authority* (1995) 41 Cal.App.4th 82, 96.) “Since the duty of a governmental agency

can only be created by statute or 'enactment,' the statute or 'enactment' claimed to establish the duty must at the very least be identified.'" (*Ibid.* quoting *Searcy v. Hemet Unified School Dist.* (1986) 177 Cal.App.3d 792, 82 emphasis added.) The Complaint fails to identify any statutory basis for either of Plaintiff's claims.

In her opposition, Plaintiff argues that she properly alleges the elements of negligence for public employee liability for the dangerous condition of public property citing Government Code section 840.2. She also argues that there is a statutory basis for negligence liability under Government Code section 815.2, and that such liability is properly pled.

The problem with Plaintiff's arguments is that neither of these statutes is alleged in the complaint. In fact, there is no statutory claim or reference asserted anywhere in the complaint.

"[I]n California all government tort liability is dependent on the existence of an authorizing statute or 'enactment' [citations], and to state a cause of action every fact essential to the existence of statutory liability must be pleaded with particularity, including the existence of a statutory duty. [citation] Duty cannot be alleged simply by stating 'defendant had a duty under the law'; that is a conclusion of law, not an allegation of fact. The facts showing the existence of the claimed duty must be alleged. [citations] Since the duty of a governmental agency can only be created by statute or 'enactment,' the statute or 'enactment' claimed to establish the duty must at the very least be identified." (*Searcy v. Hemet Unified School Dist.* (1986) 177 Cal.App.3d 792, 802; see also, *County of Los Angeles v. Superior Court* (2024) 107 Cal.App.5th 160, 178 quoting *Searcy*; *Zuniga*, supra, 41 Cal.App.4th at 96, same.)

Conclusion

The City's demurrer is **sustained in full**. Plaintiff is granted leave to amend. Any amended complaint shall be filed within 14 days of entry of this order.

5. 9:00 AM CASE NUMBER: C25-00312
CASE NAME: LISA ROSS VS. WILLIAM & WILLIAM REAL ESTATE AUCTION
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: FASIG, KELSEY
TENTATIVE RULING:

The Demurrer of Defendants Williams & Williams Marketing Services, Inc. and Kelsey Fasig to Plaintiff Lisa Ross's First Amended Complaint is sustained in its entirety, with leave to amend. Defendants' motion to strike is denied as moot.

Defendants shall prepare the order and serve notice of entry of order. Plaintiff shall have 30 days from service of the order to file a Second Amended Complaint.

Background

On February 7, 2025, Plaintiff filed this action against named Defendants Williams & Williams Marketing Services, Inc. ("Williams"), Kelsey Fasig, Barrett Daffin Frappier Treder & Engel LLP and Nationstar Mortgage LLC ("Nationstar"). The subject of the complaint is a transaction in which